

25VECV01117 25VECV01117

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25VECV01117

Ross Worley Thorne v. SMH Magnolia Condominiums LLC, et al.

Tentative

Ruling:

The

Court DENIES Defendants' Motion for Summary Judgment. The objection to Exhibit C is sustained on lack of foundation.

Relevant

Background:

This

is a slip and fall case. Plaintiff Ross Thorne alleges that on November 27, 2024, he was injured while walking down the driveway of his apartment complex. This complex is owned by Defendants SMH Magnolia Condominiums LLC, and Sitcoproperties, Inc. Plaintiff alleges that he fell after his foot got stuck inside the cracked asphalt of the driveway. Plaintiff further alleges that, had defendants kept and maintained this driveway in a safe condition, Plaintiff would not have been injured.

On February

28, 2025, Plaintiff filed suit against Defendants alleging two causes of action: 1) general negligence and 2) premises liability.

Now,

Defendants move for Summary Judgment as to both causes of action.

Analysis:

Defendants

move for summary judgment as to both causes of action, arguing that Plaintiff cannot establish either duty or causation.

In

analyzing a motion for summary judgment, courts must, 1) determine whether the moving party has negated the opponent's claims; and 2) determine whether the opposition has demonstrated the existence of a triable, material factual issue." (Hinesley v. Oakshade Town Center (2005) 135 Cal.App.4th 289, 294.) Thus, summary judgment is granted when, after the Court's consideration of the evidence set forth in the papers and all reasonable inferences accordingly, no triable issues of fact exist, and the moving party is entitled to judgment as a matter of law. (CCP § 437(c); Villa v. McFarren (1995) 35 Cal.App.4th 733, 741.)

Defendants' Burden

Defendants

bear the initial burden to negate Plaintiff's claims of general negligence and premises liability.

The

elements of a negligence claim are: 1) a legal duty owed to the plaintiff to use due care; 2) breach of duty; 3) causation; and 4) damage to the plaintiff. (County of Santa Clara v. Atlantic Richfield Co. (2006) 137 Cal.App.4th 292, 318.) Meanwhile, premises liability is a form of negligence wherein the "owner of premises is under a duty to exercise ordinary care in the management of such premises in order to avoid exposing persons to an unreasonable risk of harm." (Brooks v. Eugene Burger Management Corp. (1989) 215 Cal.App.3d 1611, 1619.) The elements of a cause of action for premises liability are the same as those for negligence: (1) the defendant's legal duty to use due care; (2) breach; (3) proximate and legal causation; and (4) damages. (Jones v. Awad (2019) 39 Cal.App.5th 1200, 1207.) Thus, Defendants' burden is the same for both causes of action.

Open and Obvious Doctrine

First,

Defendants argue that Plaintiff cannot establish the element of duty because the danger was readily apparent under the open and obvious doctrine. (MSJ, p. 5:2-17.) The no-duty exception for open and obvious dangerous conditions provides that “if a danger is so obvious that a person could reasonably be expected to see it, the condition itself serves as a warning, and the landowner is under no further duty to remedy or warn of the condition.” (Zuniga v. Cherry Avenue Auction, Inc. (2021) 61 Cal.App.5th 980, 994 [citing Jacobs v. Coldwell Banker Residential Brokerage Co. (2017) 14 Cal.App.5th 438, 447].)

Failure to Meet Initial Burden

First,

Defendants’ separate statement is not divided by issue, which makes it difficult for the Court to ascertain which material facts apply to Defendants’ “open and notorious argument”, and which apply to their causation argument. Additionally, the “supporting evidence” listed under each fact merely directs this Court to general documents. For example, the separate statement regularly directs this Court to “Responses to Document Requests-COE EXH. 3” and “Deposition excerpts – COE EXH. 6”, without any indication of which parts of these documents and exhibits are relevant to the specific fact at issue. (See e.g., Sep. Statement, ¶ 7.) This forces the Court to cobble together Defendants’ argument as best it can.

Unfortunately,

the Court cannot turn to the motion itself for guidance, as Defendants’ analysis section contains almost no analysis. (MSJ, p. 5:3-17.) Defendant instead chooses to list out a series of facts, such as, “The complex has 11 residential buildings, 116 covered parking spots and a driveway” and “Mr. Thorne admits he tripped on the speed bump.” (Ibid.) The relevance of many of these listed facts eludes this Court.

That

said, Defendants argue that, “[t]his is a text book open and obvious fact pattern case as the speed bump is in a driveway, it is sufficiently obvious that Mr. Thorne could reasonably be expected to see it, the yellow paint and condition of the speed bump itself serves as a warning.” (Id. p. 5:14-16.)

From

this the Court can discern that facts Defendants believe are relevant are: 1)

Plaintiff tripped over a vehicle speed bump, 2) the speed bump is sufficiently obvious that it would be reasonably expected that someone could see it, and 3) that the yellow paint and the condition of the speed bump serve as a warning. In other words, Defendants argue that this speed bump cannot amount to a premises liability, because Plaintiff should not have been walking over a clearly marked speed bump in the first place.

Defendants'

exhibits provide multiple photographs of the yellow speed bump, and the driveway itself. (Compendium of Evidence, Ex. 5.)

However,

the Court finds that Defendants' argument mischaracterizes Plaintiff's claim.

In Plaintiff's First Amended Complaint, he alleges that, "his foot got stuck on the cracks of the driveway"

in "[t]he area surrounding the speed bump." (FAC, p. 5.) Thus, the fact that the speed bump itself is clearly painted in a bright color is less relevant, as Plaintiff claims he was injured due to large cracks in the asphalt near the bump, not the bump itself. Unlike the speed bump, these cracks are not clearly marked. They are the same color as the ground. Thus, Defendants' main argument – the obvious nature of the speed bump – cannot be decided as a matter of law.

Failure

to Negate Exceptions

Defendants'

fail to negate the main exception to this doctrine. An exception to the open and obvious doctrine exists when, "it is foreseeable that the danger may cause injury despite the fact that it is obvious (e.g., when necessity requires persons to encounter it)." In other words, while the obviousness of the condition and its dangerousness may obviate the landowner's duty to remedy or warn of the condition in some situations, such obviousness will not negate a duty of care when it is foreseeable that, because of necessity or other circumstances, a person may choose to encounter the condition." (Kaney v Custance (2022) 74 Cal.App.5th 201, 215.)

Here,

multiple facts suggest that it was reasonably foreseeable that a person would choose to encounter this condition. First and foremost, people walk across

driveways all the time. Thus, is it readily foreseeable that there would be foot traffic along a driveway. Second, as the Court can see from Defendants' own exhibits, there is a paved disabled parking spot just a few feet from the heavily cracked pavement where Plaintiff tripped. (Compendium of Evidence, Ex. 5, p. 2.) From there, an individual would have easy pedestrian access to this driveway. In fact, foot traffic in this area was clearly anticipated, as there is a sign along this path reminding residents to pick up after their pets. (Ibid.) Thus, foot traffic along this cracked driveway is foreseeable.

Given

that there is a clear and potentially relevant exception to the doctrine Defendants rely on, it is also their burden to establish that the exception does not apply. Defendants do not speak to this issue in any way. (MSJ, p. 5:2-19.) Thus, Defendants have not met their burden as to this issue.

For

these reasons, the Court concludes that Defendants have failed to meet their initial burden to negate Plaintiff's claims via the "open and obvious" doctrine.

Causation

Second,

Defendants argue that Plaintiff cannot establish causation. (MSJ, p. 5:20-25.)

Defendants'

second argument suffers from many of the same issues as their first one. Primarily, Defendants' separate statement does not indicate which facts apply to this specific analysis, and their references to "supporting evidence" are overly broad. (See generally, Sep. Statement.) Additionally, the following is the entirety of Defendants' analysis on the issue of causation:

"Based on the evidence [SSUF 1-13],

including the Plaintiff's familiarity with the area, the presence of an alternate safe route, and the typical geometry of the bump, the incident resulted from momentary inattention or misstep, not from a defective or unreasonably dangerous condition. Stated differently, from a walkway safety expert perspective, the conditions of the property at the time of the incident, when considering the safer route available to Plaintiff, were reasonably safe and consistent with accepted standards for residential complexes." (MSJ, p.

5:20-25.)

Based

on this analysis, as well as the Court's reading of Separate Statement Paragraph 13, Defendant's argument appears to be that, because Plaintiff had an alternative, presumably safer pathway to get across the driveway, Plaintiff cannot establish the causation element of premises liability. (Sep. Statement, ¶ 13.) Crucially, Defendants cite no legal authority to support this argument. (MSJ, p. 5:20-25.) This is a fatal error, as in a motion for summary judgment, Defendants bear the burden to negate Plaintiff's claim. (Hinsley, *supra*, at 294.)

To

put this another way, this Court requires a framework. Defendants claim that they can negate causation by establishing that there was a way around the dangerous condition. The Court cannot say as a matter of law that having a way around a condition breaks causation. Instead, it is a question of fact. The Court also still lacks a framework for this analysis. That is because Defendants have not provided one. Given that it was Defendant's burden to do so, their motion fails.

Summary

In

summation, Defendants have failed to meet their initial burden to negate Plaintiff's claims on the issues of both duty and breach.

For

these reasons, the Court DENIES Defendants' Motion for Summary Judgment.

Conclusion:

The

Court DENIES Defendants' Motion for Summary Judgment. Clerk to give notice.